

**CHAPTER lviii.**

An Act to confirm certain Provisional Orders of the Local Government Board relating to Aberavon Darlington Hexham Reading Stafford and Wallasey.

A.D. 1903.

[30th June 1903.]

WHEREAS the Local Government Board have made the Provisional Orders set forth in the schedule hereto under the provisions of the Public Health Act 1875 :

38 & 39 Vict.
c. 55.

And whereas it is requisite that the said Orders should be confirmed by Parliament :

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. The Orders set out in the schedule hereto shall be and the same are hereby confirmed and all the provisions thereof shall have full validity and force.

Orders
in schedule
confirmed.

2. This Act may be cited as the Local Government Board's Provisional Orders Confirmation (No. 1) Act 1903.

Short title.

A.D. 1903.

SCHEDULE.

BOROUGH OF ABERAVON.

Aberavon *Provisional Order for altering a Local Act and a Confirming Act.*
Order.

To the Mayor Aldermen and Burgesses of the Borough of Aberavon; —

And to all others whom it may concern.

WHEREAS the Borough of Aberavon (herein-after referred to as “the Borough”) is an Urban District of which the Mayor Aldermen and Burgesses acting by the council (herein-after referred to as “the Corporation”) are the Urban District Council and as such council are the local authority within the meaning of the Public Health Act 1875;

29 & 30 Viet.
c. cexl.

And whereas the unrepealed provisions of the Aberavon Local Board Act 1866 (which Act is herein-after referred to as “the Local Act”) as altered by the Aberavon Orders 1876 to 1896 are in force in the Borough;

And whereas in pursuance of the Local Act the gas undertaking and gasworks of the Aberavon Gas and Coke Consumers Company Limited became vested in the Corporation and by Sections 5 and 6 of the Local Act provision is made with regard to the appointment of a Gas Committee by the Corporation and the meetings of the said Committee;

And whereas by Section 35 of the Local Act the Aberavon Order 1876 and the Aberavon Order 1880 the Corporation were empowered to borrow for the purposes of their gas undertaking sums amounting in the whole to the sum of fifteen thousand pounds;

And whereas by Article I. of the Aberavon Order 1896 the Corporation were empowered with the sanction of the Local Government Board and subject to the provisions of that Order to borrow upon the security of the revenue arising from their gas undertaking and of the district fund and general district rate of the Borough or upon either of such securities such sums not exceeding in the whole the sum of twenty thousand pounds as might from time to time be necessary for the purposes of their gas undertaking in addition to the said sum of fifteen thousand pounds;

And whereas it is expedient to alter the provisions of the Local Act with regard to the Gas Committee and to extend the borrowing powers of the Corporation for the purposes of their gas undertaking:

38 & 39 Viet.
c. 55.

Now therefore We the Local Government Board in pursuance of the powers given to Us by Sections 297 and 303 of the Public Health Act 1875 and by any other Statutes in that behalf do hereby order that from and after the date of the Act of Parliament confirming this Order the Local Act and the

[3 EDW. 7.] *Local Government Board's* [Ch. lviii.]
Provisional Orders Confirmation (No. 1) Act, 1903.

A.D. 1903.

Local Government Board's Provisional Orders Confirmation (No. 14) Act 1896 so far as that Act relates to the Aberavon Order 1896 shall be partially repealed and altered so that the following provisions shall have effect viz.,—

Aberavon Order.
 59 & 60 Vict.
 c. cviii.

Art. I.—(1) The provisions of Section 200 of the Public Health Act 1875 shall apply so as to enable the Corporation to appoint a committee to manage transact and carry into effect all or any of the matters and purposes of the Local Act as if the said matters and purposes were purposes of the Public Health Act 1875.

Application of Section 200 of the Public Health Act 1875 for appointment of Gas Committee and consequential alterations.

(2) From and after the appointment by the Corporation of a committee in pursuance of the applied provisions of the Public Health Act 1875 Sections 5 and 6 of the Local Act shall be repealed and any committee theretofore appointed in pursuance of those sections shall cease to act.

(3) Section 7 of the Local Act shall have effect in relation to a committee appointed in pursuance of the applied provisions of the Public Health Act 1875 as if that committee were the Gas Committee mentioned in the said section.

Art. II. Article I. of the Aberavon Order 1896 shall have effect as if the words "thirty-five thousand pounds" were substituted therein for the words "twenty thousand pounds".

Increase of borrowing powers for purposes of gas undertaking.

Art. III. This Order may be cited as the Aberavon Order 1903.

Short title.

Given under the Seal of Office of the Local Government Board this
 Twenty-seventh day of February One thousand nine hundred
 and three.

(L.S.)

WALTER H. LONG President.
 S. B. PROVIS Secretary.

BOROUGH OF DARLINGTON.

Provisional Order for altering a Confirming Act.

Darlington Order.

To the Mayor Aldermen and Burgesses of the Borough of Darlington ;—
 And to all others whom it may concern.

WHEREAS the Borough of Darlington (herein-after referred to as "the Borough") is an Urban District of which the Mayor Aldermen and Burgesses acting by the council (herein-after referred to as "the Corporation") are the Urban District Council and as such council are the local authority within the meaning of the Public Health Act 1875 ;

And whereas the unrepealed provisions of the Darlington Extension and Improvement Act 1872 (herein-after referred to as "the Local Act") as altered by the Darlington Orders 1883 to 1902 are in force in the Borough ;

35 & 36 Vict.
 c. cxii.

And whereas by Section 113 of the Local Act the Corporation were empowered to borrow for the purposes of that Act which included gasworks purposes any sums of money not exceeding one hundred and twenty thousand pounds ;

[Ch. lviii.] *Local Government Board's* [3 Edw. 7.]
Provisional Orders Confirmation (No. 1) Act, 1903.

A.D. 1903.

Darlington
Order.
 59 & 60 Vict.
 c. cx.

And whereas by Article II. of the Darlington Order 1896 which was confirmed by the Local Government Board's Provisional Orders Confirmation (No. 18) Act 1896 (herein-after referred to as "the Confirming Act") the Corporation were empowered with the sanction of the Local Government Board to borrow such further sums not exceeding in the whole the sum of fifty thousand pounds as might from time to time be necessary for the purchase of the land therein described and for the purposes of their gas undertaking ;

And whereas it is expedient that the Corporation be empowered to borrow further moneys for the purposes of their gas undertaking :

33 & 39 Vict.
 c. 55.

Now therefore We the Local Government Board in pursuance of the powers given to Us by Section 297 of the Public Health Act 1875 and by any other Statutes in that behalf do hereby order that from and after the date of the Act of Parliament confirming this Order the Confirming Act so far as it relates to the Darlington Order 1896 shall be altered so as to provide as follows viz,—

Increase of
 borrowing
 powers for pur-
 poses of gas
 undertaking.

Art. I. Article II. of the Darlington Order 1896 shall have effect as if the words "one hundred and fifty thousand pounds" were substituted therein for the words "fifty thousand pounds".

Short titles.

Art. II. This Order may be cited as the Darlington Order 1903 and the Darlington Orders 1883 to 1902 and this Order may be cited together as the Darlington Orders 1883 to 1903.

Given under the Seal of Office of the Local Government Board this
 Twenty-fifth day of February One thousand nine hundred and
 three.

(L.S.)

WALTER H. LONG President.
 S. B. PROVIS Secretary.

URBAN DISTRICT OF HEXHAM.

Hexham
Order.

Provisional Order for the alteration of a Confirming Act.

To the Urban District Council of Hexham ;—

And to all others whom it may concern.

51 & 52 Vict.
 c. cliv.

59 & 60 Vict.
 c. cviii.

WHEREAS the Urban District Council of Hexham (herein-after referred to as "the District Council") are the local authority within the meaning of the Public Health Act 1875 for the Urban District of Hexham (herein-after referred to as "the district") and the unrepealed provisions of the Hexham Local Board (Water) Act 1888 (herein-after referred to as "the Local Act") as altered by the Hexham Order 1896 which was confirmed by the Local Government Board's Provisional Orders Confirmation (No. 14) Act 1896 (herein-after referred to as "the Confirming Act") are in force in the district ;

Provisional Orders Confirmation (No. 1) Act, 1903.

And whereas by Section 30 of the Local Act the Hexham Local Board were empowered to borrow on the securities therein named such sums as they might from time to time think requisite for any of the purposes of that Act not exceeding ten thousand pounds;

A.D. 1903.

*Hexham
Order.*

And whereas by Article I. of the Hexham Order 1896 the District Council were empowered with the sanction of the Local Government Board and subject to the provisions of that Order to borrow upon the security of the revenue arising from their water undertaking and of the district fund and general district rate of the district or upon either of such securities such sums not exceeding in the whole the sum of four thousand pounds as might from time to time be necessary for the purposes of their water undertaking in addition to the said sum of ten thousand pounds;

And whereas it is expedient that the District Council should be empowered to borrow further moneys for the said purposes:

Now therefore We the Local Government Board in pursuance of the powers given to Us by Section 297 of the Public Health Act 1875 and by any other Statutes in that behalf do hereby order that from and after the date of the Act of Parliament confirming this Order the Confirming Act so far as it relates to the Hexham Order 1896 shall be altered as is herein-after provided that is to say,—

Art. I. Article I. of the Hexham Order 1896 shall have effect as if the words "nine thousand pounds" were substituted therein for the words "four thousand pounds".

Increase of
borrowing
powers for pur-
poses of water
undertaking.

Art. II. This Order may be cited as the Hexham Order 1903 and the Hexham Order 1896 and this Order may be cited together as the Hexham Orders 1896 and 1903.

Short titles.

Given under the Seal of Office of the Local Government Board this
Twelfth day of January One thousand nine hundred and three.

(L.S.)

WALTER H. LONG President.
S. B. PROVIS Secretary.

BOROUGH OF READING.

*Provisional Order for altering a Confirming Act.**Reading
Order.*

To the Mayor Aldermen and Burgesses of the Borough of Reading;—

And to all others whom it may concern.

WHEREAS the Borough of Reading (herein-after referred to as "the Borough") is an Urban Sanitary District of which the Mayor Aldermen and Burgesses acting by the council (herein-after referred to as "the Corporation") are the Urban Sanitary Authority;

And whereas there are in force in the Borough the unrepealed provisions of the Reading Corporation Act 1881 (herein-after referred to as "the

44 & 45 Vict.
c. clxxi.

[Ch. lviii.] *Local Government Board's* [3 EDW. 7.]
Provisional Orders Confirmation (No. 1) Act, 1903.

A.D. 1903. Local Act") as altered by certain Provisional Orders made by the Local
Reading Government Board and duly confirmed by Parliament including the
Order. following viz.,—

54 & 55 Vict. (1) An Order dated the Fifteenth day of May One thousand eight
c. clviii. hundred and ninety-one and confirmed by the Local Government
Board's Provisional Orders Confirmation (No. 12) Act 1891;

62 & 63 Vict. (2) The Reading Water Order 1899 which was confirmed by the Local
c. cclxxii. Government Board's Provisional Orders Confirmation (No. 14) Act
1899 (herein-after referred to as "the Confirming Act");

each of which Orders is herein-after referred to as the Order of the year in
which it was made;

And whereas by the Local Act as altered by the Order of 1891 the
Corporation were empowered to borrow for the extension and improvement
of their waterworks sums amounting in the whole to the sum of forty-four
thousand pounds in addition to the moneys which they were previously
authorised to borrow for those purposes;

And whereas by Article VI. (1) of the Order of 1899 the Corporation
were empowered with the sanction of the Local Government Board to borrow
for the purposes of their water undertaking such sums not exceeding in the
whole the sum of fifty thousand pounds as might from time to time be
necessary in addition to the said sum of forty-four thousand pounds;

And whereas it is expedient that the Corporation be empowered to
borrow further moneys for the said purposes:

38 & 39 Vict. Now therefore We the Local Government Board in pursuance of the
c. 55. powers given to Us by Section 297 of the Public Health Act 1875 and by any
other Statutes in that behalf do hereby order that from and after the date
of the Act of Parliament confirming this Order the Confirming Act so far as
it relates to the Order of 1899 shall be altered so as to provide as follows
viz.,—

Increase of Art. I. Article VI. (1) of the Order of 1899 shall have effect as if the
borrowing words "seventy thousand pounds" were substituted therein for the words
powers for pur- "fifty thousand pounds".
poses of water
undertaking.

Short title. Art. II. This Order may be cited as the Reading Water Order 1903.

Given under the Seal of Office of the Local Government Board this
Nineteenth day of March One thousand nine hundred and
three.

(L.S.)

WALTER H. LONG President.
S. B. PROVIS Secretary.

BOROUGH OF STAFFORD.

A.D. 1903.

Provisional Order for altering a Confirming Act.

*Stafford
Order.*

To the Mayor Aldermen and Burgesses of the Borough of Stafford;—

And to all others whom it may concern.

WHEREAS the Borough of Stafford (herein-after referred to as “the Borough”) is an Urban District of which the Mayor Aldermen and Burgesses acting by the council (herein after referred to as “the Corporation”) are the Urban District Council and as such council are the local authority within the meaning of the Public Health Act 1875;

And whereas there are in force in the Borough the unrepealed provisions of the Stafford Corporation Act 1876 and the Stafford Corporation Act 1880 (herein-after referred to together as “the Local Acts”) as altered by certain Provisional Orders made by the Local Government Board and duly confirmed by Parliament including the following viz.,—

39 & 40 Viet.
c. exxvi.
43 & 44 Viet.
c. lxxiii.

(1) An Order dated the Fourteenth day of May One thousand eight hundred and eighty-five and confirmed by the Local Government Board's Provisional Orders Confirmation (No. 5) Act 1885;

48 & 49 Viet.
c. lxii.

(2) An Order dated the Seventh day of June One thousand eight hundred and eighty-seven and confirmed by the Local Government Board's Provisional Orders Confirmation (No. 8) Act 1887; and

50 & 51 Viet.
c. exii.

(3) An Order dated the Fourth day of June One thousand eight hundred and eighty-nine and confirmed by the Local Government Board's Provisional Orders Confirmation (No. 16) Act 1889 (herein-after referred to as “the Confirming Act”);

52 & 53 Viet.
c. exvii.

each of which Orders is herein-after referred to as the Order of the year in which it was made;

And whereas by the Local Acts as altered by the Order of 1885 and the Order of 1887 the Corporation were empowered to borrow for the purposes of their water undertaking sums amounting in the whole to the sum of twenty-five thousand pounds;

And whereas by Article III. of the Order of 1889 the Corporation were empowered with the sanction of the Local Government Board to borrow for waterworks purposes such sum or sums as would with the amounts then authorised to be borrowed for those purposes not exceed the sum of forty-seven thousand pounds;

And whereas it is expedient that the Corporation be empowered to borrow further moneys for the said purposes:

Now therefore We the Local Government Board in pursuance of the powers given to Us by Section 297 of the Public Health Act 1875 and by any other Statutes in that behalf do hereby order that from and after the date of

38 & 39 Viet.
c. 55.

[Ch. lviii.] *Local Government Board's* [3 EDW. 7.]
Provisional Orders Confirmation (No. 1) Act, 1903.

A.D. 1903.

*Stafford
Order.*

Increase of
borrowing
powers for pur-
poses of water
undertaking.

Short titles.

the Act of Parliament confirming this Order the Confirming Act so far as it relates to the Order of 1889 shall be altered so as to provide as follows viz,—

Art. I. Article III. of the Order of 1889 shall have effect as if the words “ fifty-two thousand pounds ” were substituted therein for the words “ forty-seven thousand pounds ”.

Art. II. The Order of 1885 may be cited as the Stafford Order 1885 the Order of 1887 may be cited as the Stafford Order 1887 the Order of 1889 may be cited as the Stafford Order 1889 and this Order may be cited as the Stafford Order 1903.

Given under the Seal of Office of the Local Government Board this
Fourteenth day of February One thousand nine hundred and
three.

(L.S.)

WALTER H. LONG President.
S. B. PROVIS Secretary.

URBAN DISTRICT OF WALLASEY.

*Wallasey
Order.*

Provisional Order for altering certain Local Acts.

To the Urban District Council of Wallasey ;—

And to all others whom it may concern.

WHEREAS the Urban District Council of Wallasey (herein-after referred to as “ the Council ”) are the local authority within the meaning of the Public Health Act 1875 for the Urban District of Wallasey (herein-after referred to as “ the district ”) ;

21 & 22 Vict.
c. lxiii.
27 & 28 Vict.
c. cxvii.

And whereas there are in force in the district the unrepealed provisions of the Wallasey Improvement Act 1858 and the Wallasey Improvement Act 1864 (each of which Acts is herein-after separately referred to as the Act of the year in which it was passed and both of which Acts are herein-after referred to collectively as “ the Local Acts ”) as altered by certain other Local Acts and by certain Provisional Orders of the Local Government Board which were duly confirmed by Parliament but which do not affect the subject-matter of this Order ;

And whereas by virtue of Section 11 of the Act of 1858 as altered by Section 18 of the Act of 1864 the Council are empowered to demand for a supply of water for domestic purposes an annual rent not exceeding six pounds per centum on the annual value of the house in respect of which such supply of water is afforded ;

And whereas it is expedient that the maximum water rent which the Council are empowered to demand for a supply of water for domestic purposes should be increased as herein-after mentioned :

38 & 39 Vict.
c. 55.

Now therefore We the Local Government Board in pursuance of the powers given to Us by Section 303 of the Public Health Act 1875 and by

any other Statutes in that behalf do hereby order that from and after the Twenty-ninth day of September One thousand nine hundred and three the Local Acts shall be altered as follows:—

A.D. 1903.

*Wallasey
Order.*

Art. I.—(1) Section 18 of the Act of 1864 shall have effect as if in that section for the words “six pounds per centum on the annual value” there were substituted the words “ten pounds per centum on the rateable value”.

Increase of
maximum
water rent
chargeable on
water supplied
for domestic
purposes.

(2) For the purposes of subdivision (1) of this Article the rateable value of any premises shall be ascertained by the valuation list in force at the beginning of any quarter in respect of which a demand of rent is made by the District Council or if there is no valuation list in force by the rate made for the relief of the poor next before the beginning of the said quarter. Provided that where any rent is demanded in respect of a supply of water to a part only of any premises and the rateable value of the said part is not separately shown in the valuation list or rate as the case may be the rateable value of that part for the purposes aforesaid shall be a fairly apportioned share of the rateable value of the whole premises and the apportionment in case of dispute shall be determined by a Petty Sessional Court.

Art. II. This Order may be cited as the Wallasey Order 1903.

Short title.

Given under the Seal of Office of the Local Government Board this
Twenty-fifth day of February One thousand nine hundred and
three.

(L.S.)

WALTER H. LONG President.
S. B. PROVIS Secretary.

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